

STATE OF NEW YORK

3499--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 28, 2025

Introduced by M. of A. LAVINE, MEEKS, BERGER -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the judiciary law, in relation to requiring data reporting by the chief administrator to delineate specific information relating to all courts in the unified court system, including town and village courts

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (e) of subdivision 2 of section 212 of the judiciary law, as amended by chapter 323 of the laws of 1987, the closing
2 paragraph as amended by chapter 349 of the laws of 1995, is amended to
3 read as follows:

4
5 (e) Prepare forms and compile and publish data on family offenses as
6 defined in subdivision one of section eight hundred twelve of the family
7 court act or subdivision one of section 530.11 of the criminal procedure
8 law, and proceedings or actions involving family offenses in all
9 courts^[7] in the unified court system, and require reporting of such
10 data by all courts, including town and village courts to the greatest
11 extent practicable, including but not limited to the following information:
12

13 (i) the offense alleged;
14 (ii) the relationship of the alleged offender to the petitioner or
15 complainant;
16 (iii) the court where the action or proceeding was instituted;
17 (iv) the disposition; and
18 (v) in the case of dismissal, the reasons therefor.

19 In executing this requirement, the chief administrator may adopt rules
20 requiring appropriate law enforcement or criminal justice agencies to
21 identify actions and proceedings involving family offenses and, with
22 respect to such actions and proceedings, to report, in such form and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 manner as the chief administrator shall prescribe, the information specified herein.

2
3 The chief administrator of the courts shall adopt rules to facilitate record sharing and other communication among [~~the supreme, criminal and family~~] all courts in the unified court system, including town and village courts, subject to applicable provisions of the domestic relations law, criminal procedure law and the family court act pertaining to the confidentiality, expungement and sealing of records, where such courts exercise concurrent jurisdiction over family offense proceedings or proceedings involving orders of protection.

11 § 2. The opening paragraphs of paragraphs (u-1) and (v-1) of subdivision 2 of section 212 of the judiciary law, as added by chapter 102 of the laws of 2020, are amended to read as follows:

14 Compile and publish data on misdemeanor offenses in all courts in the unified court system, and require reporting of such data by all courts, including town and village courts, disaggregated by county, and by individual court, including the following information:

18 Compile and publish data on violations, to the greatest extent practicable, in all courts in the unified court system, and require reporting of such data by all courts, including town and village courts, disaggregated by county, and by individual court, including the following information:

23 § 3. Paragraph (w-1) of subdivision 2 of section 212 of the judiciary law, as added by chapter 102 of the laws of 2020, is amended to read as follows:

26 (w-1) The chief administrator shall include the information required by paragraphs (u-1) [~~and~~], (v-1), and (ff) of this subdivision in the annual report submitted to the legislature and the governor pursuant to paragraph (j) of subdivision one of this section. The chief administrator shall also make the information required by paragraphs (u-1) [~~and~~], (v-1), and (ff) of this subdivision available to the public by posting it on the website of the office of court administration and shall update such information on a monthly basis. The information shall be posted in alphanumeric form that can be digitally transmitted or processed and not in portable document format or scanned copies of original documents.

36 § 4. Subdivision 2 of section 212 of the judiciary law is amended by adding two new paragraphs (ff) and (gg) to read as follows:

38 (ff) Prepare forms and compile and publish data on landlord-initiated eviction filings, proceedings or actions and on tenant-initiated filings, proceedings, or actions in all courts in the unified court system, and require reporting of such data by all courts, including town and village courts to the greatest extent practicable, disaggregated by county, and by individual court, including but not limited to the following information:

45 (i) in the case of landlord-initiated eviction filings, proceedings, or actions, the total number in each court by month, categorized by whether nonpayment or holdover, the amount of the money judgment entered, if any, and whether the landlord or tenant was represented by an attorney;

50 (ii) in the case of tenant-initiated filings, proceedings, or actions, the total number in each court by month categorized by whether seeking judgment directing repairs, restoration to occupancy after an unlawful eviction, or other relief, and whether the landlord or tenant was represented by an attorney;

55 (iii) the court where the action or proceeding was instituted;

1 (iv) the disposition of the proceeding, including whether a judgment
2 and warrant of eviction was issued, repairs, restoration to occupancy,
3 or other relief ordered, and the amount of the money judgment entered,
4 if any; and

5 (v) in the case of dismissal, the reasons therefor.

6 (gg) In addition to the data reporting required under paragraphs (e),
7 (u-1), (v-1), (w-1), and (ff) of this subdivision, wherever the chief
8 administrator is required to compile, report, and make other court data
9 publicly available, or wherever the chief administrator opts to require
10 such collection, reporting, and public availability of data, this shall
11 include data from all courts in the unified court system, including town
12 and village courts to the greatest extent practicable, disaggregated by
13 county and by individual court.

14 § 5. This act shall take effect two years after it shall have become a
15 law.